



CONGRESSIONAL BUDGET OFFICE COST ESTIMATE

June 20, 2008

H.R. 4199

A bill to amend the Dayton Aviation Heritage Preservation Act of 1992 to add sites to the Dayton Aviation Heritage National Historical Park

As ordered reported by the House Committee on Natural Resources on June 11, 2008

SUMMARY

H.R. 4199 would add two sites to the Dayton Aviation Heritage National Historical Park and would rename the park the Wright Brothers-Dunbar National Historical Park. The bill also would authorize the National Park Service (NPS) to make grants to local organizations for construction projects on private property within park boundaries.

Based on information obtained from NPS and assuming appropriation of the necessary amounts, CBO estimates that implementing H.R. 4199 would cost \$15 million over the 2009-2013 period and \$1 million annually thereafter for ongoing operations. Enacting the legislation would not affect direct spending or revenues.

H.R. 4199 contains no intergovernmental or private-sector mandates as defined in the Unfunded Mandates Reform Act (UMRA) and would impose no costs on state, local, or tribal governments.

ESTIMATED COST TO THE FEDERAL GOVERNMENT

The estimated budgetary impact of H.R. 4199 is shown in the following table. The costs of this legislation fall within budget function 300 (natural resources and environment).

	By Fiscal Year, in Millions of Dollars					
	2009	2010	2011	2012	2013	2009-2013
CHANGES IN SPENDING SUBJECT TO APPROPRIATION						
Estimated Authorization Level	15	*	*	*	*	1
Estimated Outlays	2	3	4	4	2	15

Note: * = less than \$500,000.

BASIS OF ESTIMATE

For this estimate, CBO assumes that the legislation will be enacted by the end of fiscal year 2008 and that the necessary amounts will be appropriated for each year. Estimated outlays are based on historical spending patterns for NPS programs.

H.R. 4199 would amend the Dayton Aviation Heritage Preservation Act of 1992 to add Hawthorne Hill and the Wright Company Factory to the Dayton Aviation Heritage National Historical Park. Based on information obtained from NPS, CBO expects that the current owners of Hawthorne Hill and the Wright Company Factory would donate those properties to NPS. CBO estimates that site development costs would be \$3 million for Hawthorne Hill and \$11 million for the Wright Company Factory. The Wright Family Foundation would continue to operate Hawthorne Hill under a cooperative agreement with NPS, which we estimate would contribute about \$1 million for that purpose over the five-year period. We expect that the Wright Company Factory would begin operations after 2013, at an annual cost of about \$1 million.

The bill also would authorize NPS to make grants to local partners for development and construction on nonfederal property within the boundaries of the Dayton Aviation Heritage National Historical Park. Based on information provided by NPS, CBO estimates that the cost of those grants would not be significant.

INTERGOVERNMENTAL AND PRIVATE-SECTOR IMPACT

H.R. 4199 contains no intergovernmental or private-sector mandates as defined in UMRA and would impose no costs on state, local, or tribal governments.

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UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF INDIANA
INDIANAPOLIS DIVISION

VICTOR GEORGE,	)	
<i>Plaintiff,</i>	)	
	)	
vs.	)	1:10-cv-0220-JMS-MJD
	)	
JUNIOR ACHIEVEMENT OF CENTRAL INDIANA,	)	
INC., <i>et al.</i> ,	)	
<i>Defendants.</i>	)	

ORDER ON MR. GEORGE’S MOTION TO STAY

Presently pending before the Court is Plaintiff Victor George’s Motion to Stay Consideration, [dkt. 173], of Defendant Junior Achievement of Central Indiana, Inc.’s (“JA”) Bill of Costs, [dkt. 167], and Motion for Attorney’s Fees, [dkt. 169]. For the following reasons, the Court grants Mr. George’s request for a stay on the Court’s consideration of both motions.

On September 28, 2011, the Court entered partial summary judgment in favor of JA on Mr. George’s ERISA claim and dismissed Mr. George’s remaining state law claims without prejudice. [Dkt. 159.] Mr. George filed a notice of appeal on October 7, 2011, [dkt. 161], and represents that his appellant’s brief is due later this month, [dkt. 173 at 4].

On October 12, 2011, JA filed a Bill of Costs, [dkt. 167], and a Motion for Attorney’s Fees, [dkt. 169]. The following day, Mr. George filed a Motion to Stay the Court’s Consideration of both motions. [Dkt. 173.] Mr. George contests both motions but argues that in the interests of judicial economy and to avoid piecemeal litigation, the Court should stay consideration of the motions pending the outcome of his appeal.

JA does not contest the stay request on its Motion for Attorney’s Fees. [Dkt. 175 at 1.] JA does, however, object to the Court staying a ruling on the Bill of Costs. JA argues that there

is no dispute that it is the prevailing party and that no authority supports a stay. [Dkt. 175 at 2-3.]

Costs are appealable separately from the merits, and a district court may award costs even while a substantive appeal is pending. *Barton v. Zimmer, Inc.*, 2010 U.S. Dist. LEXIS 59936, *2 (N.D. Ind. 2010). The Court has discretion, however, to stay ruling on a bill of costs until after the merits appeal is decided. *Id.* at *3. Piecemeal appeals are disfavored in the federal system. *Continental Cas. Co. v. Anderson Excavating & Wrecking Co.*, 189 F.3d 512, 518 (7th Cir. 1999).

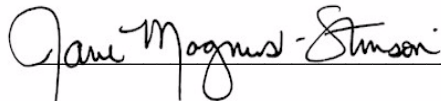
If the Court grants the stay request on the motion for attorney's fees (which the parties agree it should do) but denies the stay request for the bill of costs, it is possible that two more appeals could result in addition to the appeal of the Court's partial summary judgment order that is already underway. And if the Court denies Mr. George's motion to stay, the parties will have to brief the issues surrounding the fee petition and the bill of costs before the Court can rule on the merits of those requests. Because Mr. George's appellant's brief in the pending appeal is due later this month, [dkt. 173 at 4], there is not enough time for the parties to brief the merits of the pending motions and the Court to rule on the same before Mr. George's appellate deadline. Either way, disfavored piecemeal litigation could result.

Moreover, as Mr. George points out, the issue he raises in the pending appeal is an issue of first impression in the Seventh Circuit, and there is a 3-2 split of authority between the federal circuits that have addressed the issue. In addition to suggesting that Mr. George's position in this litigation may have been substantially justified, the outcome of the novel issue on appeal may eliminate any entitlement JA has to costs and fees and moot JA's pending motions.

Finally, Mr. George contends that discovery will be necessary to determine the reasonableness of JA's requests. [Dkt. 173 at 4.] JA does not dispute this contention. It is inefficient for the parties to engage in discovery and the Court to rule on issues that may ultimately be moot after the Seventh Circuit decides Mr. George's pending appeal.

For the reasons stated herein, the Court **GRANTS** Mr. George's Motion to Stay. [Dkt. 173.] The Court's consideration of JA's Bill of Costs, [dkt. 167], and Motion for Attorney's Fees, [dkt. 169], will be stayed until Mr. George's appeal from the Court's partial summary judgment order is final.

11/04/2011

A handwritten signature in black ink, reading "Jane Magnus-Stinson". The signature is fluid and cursive, with the first name "Jane" and last name "Magnus-Stinson" clearly legible.

Hon. Jane Magnus-Stinson, Judge
United States District Court
Southern District of Indiana

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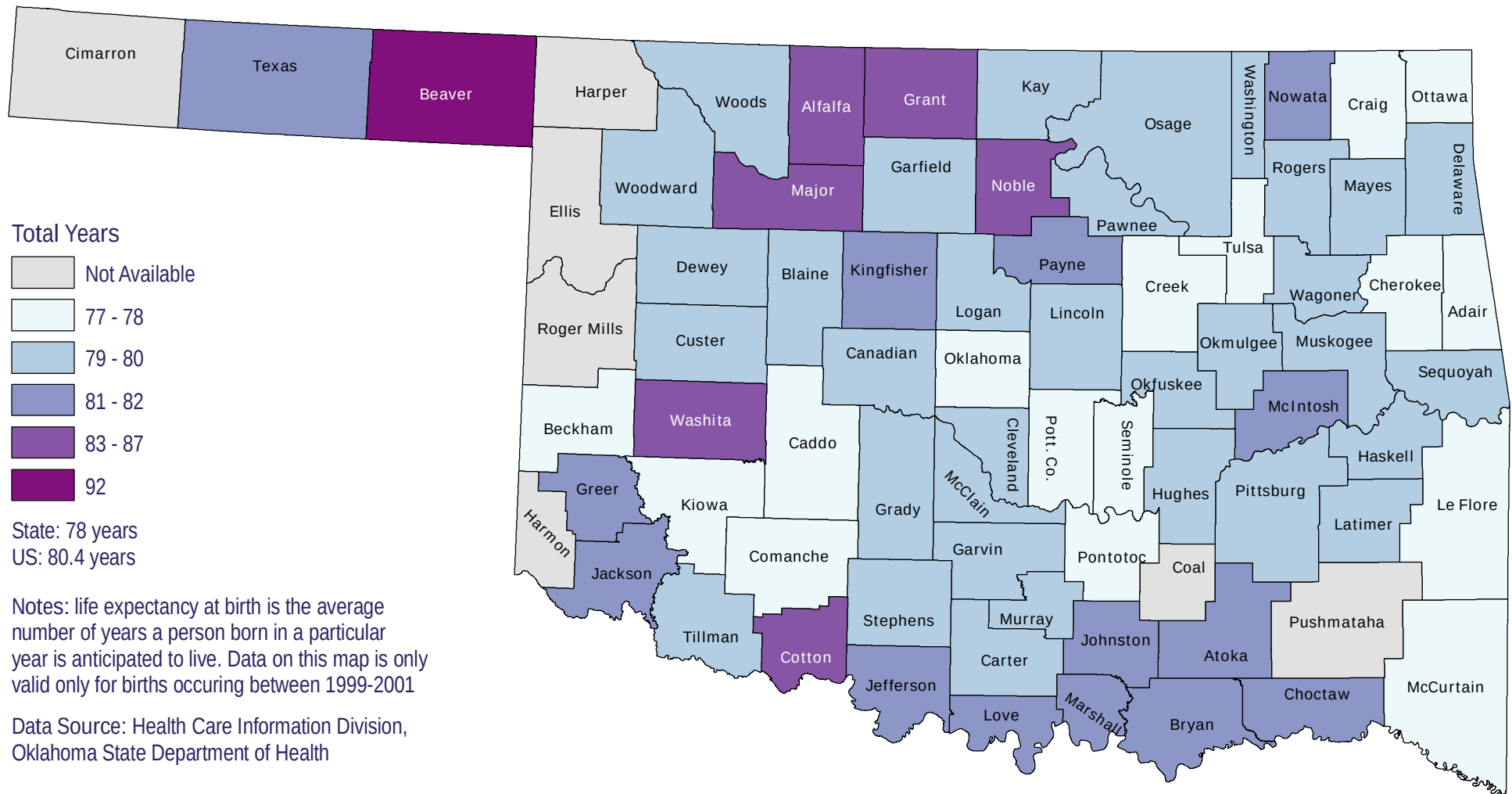
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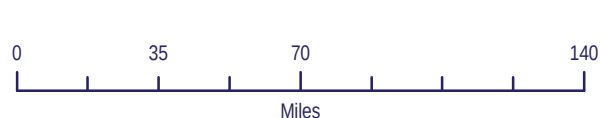
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Life Expectancy: Total Life Expectancy for Female Births Between 1999 - 2001



Created: 07.14.2008

Projection/Coordinate System: USGS Albers Equal Area Conic



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Disclaimer: This map is a compilation of records, information and data from various city, county and State offices and other sources, affecting the area shown, and is the best representation of the data available at the time. The map and data are to be used for reference purposes only. The user acknowledges and accepts all inherent limitations of the map, including the fact that the data are dynamic and in a constant state of maintenance.



Health Care Information
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Oklahoma State Department of Health